

IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)
WRIT PETITION NO. 5041 OF 2021.

IN THE MATTER OF :

An application under Article 102 of the
Constitution of the People's Republic of
Bangladesh.

AND

IN THE MATTER OF:

Mohammad Azizul Haque

.....Petitioner

- V E R S U S -

Bangladesh, represented by the Secretary,
Ministry of Education, Bangladesh Secretariat,
Dhaka and others.

.....Respondent

Mr.Nazmul Hassan Rubel, Advocate

.....For the Petitioner

Mr. Mohammad Tofazzal Haider, Advocate

.....For the Respondent No. 3.

Mr. Md. Humayun Kabir with

Mr. Md. Tazul Islam Akhand, Advocates

.....For the Respondent No. 6.

Heard on 02.08.2023

Judgment on 14.08.2023

Present:

Mr. Justice Zafar Ahmed

And

Mr. Justice Md. Bashir Ullah

Md. Bashir Ullah, J:

On an application under Article 102 of the Constitution of the
People's Republic of Bangladesh, this Rule was issued calling upon the
respondents to show cause as to why the Memo No.ঢাশিৰো/বি/৬/আএন্ডআ/৩০০
dated 02.05.2021 approving the dismissal of the petitioner from the post of
Headmaster of Pura DC High School, Tongibari, Munshiganj pursuant to
the decision of Appeal and Arbitration Committee dated 16.03.2021
affirming the final decision of dismissal dated 20.02.2020 taken by the

Managing Committee of Pura DC High School, Tongibari, Munshiganj should not be declared to have been passed without lawful authority and is of no legal effect and as to why a direction should not be given upon the respondents to reinstate the petitioner in service as regular Headmaster of the Pura DC High School, Tongibari, Munshiganj with his all back salary, bonus, benefits and emoluments as accrued time to time from suspension to the date of reinstatement and/or pass such other or further order or orders as to this Court may seem fit and proper.

At the time of issuance of the Rule, the respondents were restrained by an order of injunction from appointing any person as regular/permanent Headmaster in Pura DC High School for 03(three) months.

Facts, necessary for the disposal of the Rule, in brief, are that the petitioner was appointed as Headmaster of Pura DC High School on 03.10.2013. The respondent No. 6 served a show cause notice containing 16 (Sixteen) allegations against the petitioner on 07.12.2019. He was asked to reply to the notice within 15 days as to why he should not be dismissed from service. The petitioner replied to the notice on 09.01.2020 denying the allegations. He was placed under suspension on 10.01.2020. On 09.02.2020, the petitioner filed another detailed reply to the Managing Committee, categorically denying the allegations brought against him. Eventually, the Managing Committee decided to dismiss the petitioner from service. On 10.03.2020, the Managing Committee forwarded the decision to the Appeal and Arbitration Committee for examination. On 16.03.2021, the Appeal and Arbitration Committee examined the matter and affirmed the decision of the Managing Committee. The Board approved the decision of the Appeal and Arbitration Committee. The

Inspector of Schools communicated the decision of the Board and the Appeal and Arbitration Committee, vide Memo No. ঢাশিৰো/বি/৬/আএন্ডআ/৩০০ dated 02.05.2021.

Finding no alternative efficacious remedy, the petitioner moved this Court and obtained the instant Rule Nisi.

The respondent No.3 contested the Rule by filing an affidavit-in-opposition. The respondent No. 6 contested the Rule but did not file any affidavit-in-opposition.

The case of the respondent Nos. 3 and 6 is that the Managing Committee of Pura DC High School dismissed the petitioner on 20.02.2020 and forwarded it to the Appeal and Arbitration Committee of the Board on 10.03.2020 for examination. The decision to dismiss the petitioner was examined by the Appeal and Arbitration Committee on 16.03.2021 in the presence of both parties. The committee approved the decision of the Managing Committee on 16.03.2021. Thereafter, in the 220th Board meeting of the Board of Intermediate and Secondary Education, Dhaka held on 16.03.2021, the proceedings and minutes of the Appeal and Arbitration Committee were approved. The Inspector of Schools issued the impugned letter dismissing writ petitioner, by Memo No. ঢাশিৰো/বি/৬/আএন্ডআ/৩০০ dated 02.05.2021 in accordance with law.

Mr. Nazmul Hassan Rubel, learned Advocate appearing on behalf of the petitioner, submits that the inquiry committee did not serve any notice to the petitioner to explain his case; no charge was framed against the petitioner and no charge sheet was given to him; the inquiry committee was not independent and impartial; inquiry report contained a whimsical

description of the allegations showing that they were concocted and not supported by any cogent evidence. No opportunity of hearing was given to the petitioner to disprove the allegations against him and as such, the impugned dismissal order is liable to be set aside.

Mr. Mohammad Tafazzal Haider, the learned Advocate appearing for the respondent No. 3 submits that the Managing Committee of Pura DC High School dismissed the writ petitioner on 20.02.2020 and forwarded it to the Appeal and Arbitration Committee of the Board of Intermediate and Secondary Education, Dhaka on 10.03.2020 for examination. The Appeal and Arbitration Committee examined the dismissal of the petitioner on 16.03.2021 in the presence of both parties. After examining the papers, the said committee approved the decision of the Managing Committee. The Board approved the decision taken by the managing committee following the relevant provisions of the law.

Mr. Md. Humayun Kabir, learned Advocate appearing for respondent No.6, submits that the Managing Committee issued a show cause notice on 07.12.2019. The writ petitioner replied to the show cause notice on 09.02.2020. After that, the Managing Committee held a meeting and decided to dismiss the writ petitioner from the service due to professional misconduct committed by him under Regulation 11 of The Recognized Non-Government Secondary School Teachers (Board of Intermediate and Secondary Education, Dhaka) and Terms and Conditions of Service Regulations 1979. (Shortly the Regulations, 1979). The Managing Committee sent the proposal for dismissal to be examined by the Appeal and Arbitration Committee following the provisions of Regulation

12 of the Regulations 1979. As per the provisions of law, the Board of Intermediate and Secondary Education, Dhaka approved the decision to dismiss the writ petitioner from service. In this regard, the Board sent letter dated 02.05.2021. The Managing Committee followed the procedure specified in the Regulations 1979. So, there is no illegality in the impugned order and the petitioner is not entitled to be reinstated in the service as Headmaster of the Pura DC High School, Munshiganj. In support of his contention, the learned Advocate refers to the judgment dated 18.01.2022, passed in ***Md. Helal Uddin Vs. Government of Bangladesh*** in Writ Petition No. 8066 of 2017 and judgment dated 16.01.2012, passed in ***Md. Jalal Uddin Vs. Chairman, Secondary and Higher Secondary Education Board, Rajshahi and others*** in Writ Petition No. 293 of 2012.

Heard the learned Advocates for the parties and perused the writ petition, supplementary affidavit, affidavit-in-opposition, annexures and other materials on record.

The records show that the Managing Committee served a show cause notice on 07.12.2019 to the writ petitioner stating 16 allegations brought against him as to why the petitioner should not be dismissed from the service within 15(fifteen) days and accordingly, he was suspended from his service. The petitioner replied to the said notice on 09.02.2020 denying all the allegations. On receipt of the explanation from the petitioner, the Managing Committee duly constituted an inquiry committee consisting of three members on 18.01.2020, wherein one of the members was a teacher representative as per the provision of Regulation 14(2) of the Regulations, 1979, which runs as follows:

14. Procedure for drawing proceedings:

(1) When a teacher is to be proceeded against for offences specified in regulation 11, he shall be called upon by **a notice to submit a written explanation within seven days** as to why the penalty or penalties specified in the notice should not be imposed on him for the alleged offences and asking him if he desires to be heard in person.

(2) On receipt of the explanation from the teacher and his desire to be heard in person, the authority competent to impose penalty shall constitute **a three member enquiry committee** with a Chairman.

Provided that at least one of the members of the Committee shall be from the teaching profession.

(Bold and underlined by us to give emphasis)

After examining the witnesses and holding inquiry, the inquiry committee submitted the inquiry report on 31.01.2020 before the Managing Committee. The inquiry committee opined and recommended as follows:

“যেহেতু অভিযোগগুলো গুরুতর এবং সত্য বলে প্রমাণিত হয়েছে তাই যথাযথ শাস্তিমূলক ব্যবস্থা গ্রহণ করে প্রতিষ্ঠানটিকে সকল প্রকার দুর্নীতি, অনিয়ম, স্বৈচ্ছাচারিতা ও বিশৃংখলা থেকে মুক্ত করতে হলে প্রধান শিক্ষকের বিরুদ্ধে বিধি মোতাবেক বরখাস্তসহ শাস্তিমূলক ব্যবস্থা গ্রহণের সুপারিশ করছি।”

Thereafter, a meeting of the Managing Committee was held on 20.02.2020. In the said meeting, it was unanimously resolved that the writ petitioner would be dismissed from the service, and the decision of the dismissal would be sent to the Appeal and Arbitration Committee of the Board for examination and approval. Accordingly, the matter was forwarded to the Appeal and Arbitration Committee of the Intermediate and Secondary Education Board, Dhaka, in accordance with the provisions of Regulation 12 of the Regulations, 1979 which runs as follows:

12. Power to impose penalty:

The power to impose penalty upon a teacher under Regulation 11 shall vest in the authority competent to make appointment:

Provided that the penalties of dismissal or removal from service shall be not be imposed unless the proposal for such penalty is **examined by the Appeal and Arbitration Committee and approved by the Board.**

(Bold and underlined by us to give emphasis)

It appears from the resolutions of the meeting held on 16.03.2021 of the Appeal and Arbitration Committee (Annexure-2 of the affidavit-in-opposition) that the committee decided as follows:

জনাব মুহাম্মদ আজিজুল হক, প্রধান শিক্ষক, পুরা ডি.সি. উচ্চ বিদ্যালয়, পুরা, টঙ্গীবাড়ী, মুন্সিগঞ্জ-বোর্ড পরীক্ষায় ম্যানেজিং কমিটিকে না জানিয়ে অতিরিক্ত অর্থ আদায় ও আত্মসাৎ, বিনা রশিদে ছাত্র-ছাত্রীদের নিকট থেকে নানা অযুহাতে অর্থ আদায়, ম্যানেজিং কমিটির সাথে সম্পূর্ণরূপে অসহযোগিতা ও মেয়াদ শেষ হবার অনেক আগেই নতুন কমিটি গঠনে নির্বাচনী তফসীল

ঘোষণা, স্বেচ্ছাচারিতা, দুর্নীতি, অনিয়ম ও শিক্ষক-কর্মচারীদের প্রধান শিক্ষকের বিরুদ্ধে অনাস্থাসহ বিবিধ অভিযোগ ইত্যাদি কারণে বিদ্যালয়ের ম্যানেজিং কমিটির গৃহীত সিদ্ধান্ত অনুমোদনের বিষয় বিবেচনা।

সিদ্ধান্তঃ বাদী ও বিবাদী উপস্থিত। সভায় বিস্তারিত আলোচনা, সংযুক্ত কাগজ পত্র পর্যালোচনা এবং জেলা শিক্ষা অফিসার কর্তৃক প্রদত্ত তদন্ত প্রতিবেদনে আনীত অভিযোগ প্রমাণিত হওয়ায় বিদ্যালয়ের ম্যানেজিং কমিটির সিদ্ধান্ত অনুমোদন করা হয়।

The writ petitioner appeared before the Appeal and Arbitration Committee.

The 220th Board meeting of the Intermediate and Secondary Education Board, Dhaka was held wherein the proceedings and minutes passed in the Appeal and Arbitration Committee dated 16.03.2021 were approved. The relevant portion of the minutes of the 220th meeting of the Board runs as follows:

আলোচনা/প্রস্তাবঃ

১৫/১১/২০২০ এবং ১৬/০৩/২০২১ তারিখে অনুষ্ঠিত আপিল এন্ড আরবিট্রেশন কমিটি সভার কার্য বিবরণী অনুমোদনের জন্য উপস্থাপন করা হয়। উপস্থাপিত কার্য বিবরণীগুলো সম্মানিত সদস্যগণ পুঙ্খানুপুঙ্খ পর্যালোচনা করে।

সিদ্ধান্তঃ ১৫/১১/২০২০ এবং ১৬/০৩/২০২১ তারিখে অনুষ্ঠিত আপিল এন্ড আরবিট্রেশন কমিটি সভার কার্য বিবরণী সর্ব সম্মতভাবে অনুমোদন করা হয়।

Upon receipt of the decision passed by the Board, the Inspector of Schools communicated the impugned letter dated 02.05.2021, vide Memo No. ঢাশিৰো/বি/৬/আএন্ডআ/৩০০ in accordance with law. The impugned letter runs as follows:

মাধ্যমিক ও উচ্চ মাধ্যমিক শিক্ষা বোর্ড, ঢাকা
www.dhakaeducationboard.gov.bd

নং-ঢাশিৰো/বি/৬/আএডআ/৩০০

তারিখঃ ০২/০৫/২০২১

বিষয়ঃ বিদ্যালয়ের প্রধান শিক্ষক (বরখাস্তকৃত) জনাব মুহাম্মদ আজিজুল হক-কে চূড়ান্ত বরখাস্ত প্রসঙ্গে।

সূত্রঃ (১) ম্যানেজিং কমিটির সিদ্ধান্তসহ ০৯/০৩/২০২০ তারিখের আবেদন।

(২) জেলা শিক্ষা অফিসার, মুন্সিগঞ্জ এর ১৫/১১/২০২০ তারিখের ৬৭১ নং তদন্ত প্রতিবেদন।

(৩) বোর্ডের ১৬/০৩/২০২১ তারিখের আপীল এন্ড আরবিট্রেশন কমিটির সিদ্ধান্ত।

উপর্যুক্ত বিষয় ও সূত্রের প্রেক্ষিতে জানানো যাচ্ছে যে, বিদ্যালয়ের প্রধান শিক্ষক (বরখাস্তকৃত) জনাব মুহাম্মদ আজিজুল হক এর বিরুদ্ধে ম্যানেজিং কমিটি কর্তৃক আনীত অভিযোগ নামা ১) বোর্ড পরীক্ষায় ম্যানেজিং কমিটিকে না জানিয়ে অতিরিক্ত অর্থ আদায় ও আত্মসাৎ, ২) বিনা রশিদে ছাত্র-ছাত্রীদের নিকট থেকে নানা অযুহাতে অর্থ আদায়, ৩) ম্যানেজিং কমিটির সাথে সম্পূর্ণরূপে অসহযোগিতা ও মেয়াদ শেষ হবার অনেক আগেই নতুন কমিটি গঠনে নির্বাচনী তফসীল ঘোষণা, ৪) স্বৈচ্ছাচারিতা, দুর্নীতি, অনিয়ম ও শিক্ষক-কর্মচারীদেরকে প্রধান শিক্ষকের বিরুদ্ধে অনাস্থা আনয়নসহ ইত্যাদি অভিযোগের কারণে ম্যানেজিং কমিটি চূড়ান্ত বরখাস্তকরণের সিদ্ধান্ত অনুমোদনের জন্য বোর্ডের আপীল এন্ড আরবিট্রেশন কমিটিতে আবেদন করেছে। উক্ত অভিযোগসমূহ জেলা শিক্ষা অফিসার কর্তৃকও তদন্ত করা হয়। আনীত অভিযোগ সমূহ জেলা শিক্ষা অফিসার, মুন্সিগঞ্জ এর তদন্ত প্রতিবেদনে প্রমাণিত হয়েছে।

২। এমতাবস্থায়, বোর্ডের ১৬/০৩/২০২১ আপীল এন্ড আরবিট্রেশন কমিটি প্রাপ্ত প্রতিবেদন এবং অভিযোগ সমূহ পুঙ্খানুপুঙ্খ বিশ্লেষণপূর্বক বিদ্যালয়ের প্রধান শিক্ষক (বরখাস্তকৃত) জনাব মুহাম্মদ আজিজুল হক-কে ম্যানেজিং কমিটি কর্তৃক চূড়ান্ত বরখাস্তকরণের সিদ্ধান্তের বিষয়টি সর্ব সম্মতভাবে অনুমোদন করেছে।

চেয়ারম্যান মহোদয়ের আদেশক্রমে

স্বাঃ

প্রাপকঃ সভাপতি, ম্যানেজিং কমিটি
পুরা ডি.সি. উচ্চ বিদ্যালয়
পোঃ পুরা, উপজেলা-টঙ্গীবাড়ী
জেলা- মুন্সিগঞ্জ।

বিদ্যালয় পরিদর্শক
মাধ্যমিক ও উচ্চ মাধ্যমিক শিক্ষা বোর্ড, ঢাকা।

Rule 41 (Gha)(2) of the “মাধ্যমিক ও উচ্চ মাধ্যমিক শিক্ষা বোর্ড, ঢাকা (মাধ্যমিক ও উচ্চ মাধ্যমিক স্তরের বেসরকারী শিক্ষা প্রতিষ্ঠানের গভর্নিং বডি ও ম্যানেজিং কমিটি) প্রবিধানমালা, ২০০৯” empowers the Managing Committee to impose penalty upon a teacher provided that penalty of dismissal or removal from service shall not be imposed unless the proposal for such penalty is examined by the Appeal and Arbitration Committee and approval by the Board. In the instant case,

the Appeal and Arbitration Committee examined the proposal of dismissal, and the Board approved the dismissal order of the Managing Committee.

It appears that all formalities were followed before passing the impugned order by the authority, and all procedures were followed properly i.e., show cause notice was served upon the petitioner, the inquiry was made and the petitioner also appeared before the Appeal and Arbitration Committee, and eventually, the Dhaka Board approved the dismissal order. Therefore, the question of illegality does not arise in the instant writ petition.

We find no substance and merit in the Rule.

In the result, the Rule is discharged.

There will be no order as to cost.

The earlier restraining order from appointing any person as regular/permanent Headmaster in Pura DC High School is hereby recalled.

The office is directed to communicate the order.

Zafar Ahmed, J.

I agree.